

Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017

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Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017

TAMILNADU

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Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017

Rule

TAMIL-NADU-RIGHT-TO-FAIR-COMPENSATION-AND-TRANSPARENCY-IN-LAND-ACQUISITION-REHABILITATION-AND-RESETTLEMENT-RULES-2017 of 2017

Published on 20 September 2017

Commenced on 20 September 2017

[This is the version of this document from 20 September 2017.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017

Published vide Notification No. SROA-41(c-1)/2017, dated 21.09.2017, G.O. Ms. No. 298, Revenue & Disaster Management (LA-I(1), 20th September 2017

Last Updated 16th January, 2020

General Statutory Rules, Notifications, Orders, Regulations, etc., issued by Secretariat Departments.

Revenue and Disaster Management Department

No. SROA-41(c-1)/2017. - In exercise of the powers conferred by section 109 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013), the Governor of Tamil Nadu hereby makes the following Rules, the draft of the same having been previously published as required under Section 112 of the said Act.

Chapter I

General

1.

Short title, applicability and commencement.

(1)

These rules may be called the Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017.

(2)

They shall extend to the whole of the State of Tamil Nadu.

(3)

They shall come into force on the 21st day of September 2017.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013);

(b)

"Administrator" [means the Administrator for Rehabilitation and Resettlement, appointed by the State Government, by notification, under sub-section (1) of section 43 of the Act, in respect of a project]

[Notified vide G.O. Ms. No. 302 Rev & DM Department dated 20-9-2017]

;

(c)

"Appropriate Government" [means the State Government in relation to the acquisition of land situated within the territory of the State of Tamil Nadu and includes the Collector of the revenue district in respect of land acquisition for public purposes for an area not exceeding such as may be notified by the State Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

;

(d)

"Collector" means the Collector of a revenue district and includes any officer, not below the rank of Tahsildar, specially designated by the appropriate Government, to carry out the functions of the Collector under the Act;

(e)

"Development Plan" means a plan prepared on behalf of a Requiring Body under sub-sections (4) and (5) of section 41 of the Act;

(f)

"Form" means the Forms appended to these Rules;

(g)

"local bodies" means rural local bodies and urban local bodies constituted or established under the respective Acts;

(h)

"Section" means section of the Act;

(i)

"SIA Agency" means the agency appointed by the Tamil Nadu State Social Impact Assessment Unit under rule 7 to carry out the Social Impact Assessment study and to prepare the Social Impact Management Plan, in respect of a project;

(j)
"Social Impact Assessment" or "SIA" means an assessment made under section 4;

(k)
"Social Impact Management Plan" means the plan prepared as a part of the Social Impact Assessment Process under sub-section (6) of section 4;

(l)
"State Government" and "Government" means the Government of Tamil Nadu;

(m)
"TNSSIA Unit" means the Tamil Nadu State Social Impact Assessment Unit established by the State Government under rule 7;

(n)
"Urban Area" [means]
[Referred in Sl. No. 3 of First Schedule to the Act]

, -
(i)
the area (including village panchayats) lying within the territorial limits of the Chennai Metropolitan Development Authority;

(ii)
Municipal Corporations having a population of 5 lakhs and above as per 2011 census (i.e. Madurai, Tiruchirappalli, Salem, Coimbatore and Tirunelveli Municipal Corporations, except Chennai City Municipal Corporation) and the area (including village panchayats) that falls within 8 kilometers distance from the limits of the said Municipal Corporations;

(iii)
all other Municipal Corporations, Municipalities, Town Panchayats, Cantonments and Townships; and

(iv)
any other area that may be notified as urban area by the State Government from time to time.

(2)
Words or expressions used but not defined in these Rules but defined in the Act, shall have the meanings, respectively, assigned to them in the Act.

Chapter II

Request For Land Acquisition

3.
Request for acquisition of land.

(1)
Whenever land in any area is required or likely to be required for any public purpose, the Requiring Body or its authorised representative, for whom land is to be acquired, shall file the request to the Collector concerned in FORM-I along with the following documents, namely:-

(i)
Detailed project report;

(ii)
Sanction letter of project;

(iii)
Three copies of records of rights and revenue maps of the affected areas;

(iv)
Information about the classification of land, that is, whether irrigated, multi-cropped, single cropped, wasteland, etc;

(v)
Any other information required by the Collector.

(2)
A copy of the request submitted to the Collector under sub-rule (1) shall be submitted to the [Commissioner.]
[Notified vide G.O. Ms. No. 304 Rev & DM Department dated 20-9-2017]

(3)
Where the Requiring Body is the Government, the request shall be filed by the Secretary of the Department concerned

and in case of a Public Sector Undertaking, by the Secretary of the Department dealing with such Undertaking.

4.

Action by Collector on receiving request.

(1)

(a)

The Collector, on receipt of the request submitted under sub-rule (1) of rule 3, shall constitute a Committee consisting of officers from the Revenue & Disaster Management Department, Agriculture Department, Forest Department, Public Works Department and any other Department, as the Collector deems necessary, to make a field visit along with the representatives of the Requiring Body to make a preliminary enquiry regarding the,-

(i)

availability of waste or arid land;

(ii)

correctness of the particulars furnished in the request submitted under sub-rule (1) of rule 3;

(iii)

bare minimum land required for the project;

(iv)

conformity of the request with the provisions of the Act. The Committee shall then submit a report to the Collector.

(b)

The report of the Committee referred to in clause (a) shall include the following, namely:-

(i)

whether the proposed acquisition of land serves any public purpose;

(ii)

whether the extent of land proposed for acquisition is the absolute bare-minimum needed for the project;

(iii)

whether the acquisition of land at an alternate place has been considered and found not feasible;

(iv)

whether there is any land in the project area which has been previously acquired and remain unutilised;

(v)

whether such land, if any, acquired earlier and remains unutilised, may be used for the project; and

(vi)

the recommendations of the Committee.

(2)

(a)

If the Collector, on the basis of the report of the Committee referred to in sub-rule (1), any other information available with him and instructions issued by the State Government in this regard, is satisfied that the request is in conformity with the provisions of the Act, he shall make a preliminary estimate of the cost of the acquisition as defined in clause (i) of section 3.

(b)

The administrative cost as defined under item (A) of sub-clause (vi) of clause (i) of section 3 shall not exceed the percentage of the cost of compensation as may be specified by the appropriate Government from time to time.

(c)

The Collector shall inform the Requiring Body to deposit the estimated cost of acquisition or part thereof as specified by the Collector in the account designated for the purpose by the State Government, before the publication of declaration under sub-section (2) of section 19 within such period as may be specified by him and the Requiring Body shall deposit the same within the said period.

(3)

The Requiring Body shall deposit the balance cost of acquisition after final estimation is prepared by the Collector and in cases where excess amount is awarded by the Authority or Court, the same shall be deposited, as and when so required.

5.

Acquisition under Urgency Provisions and Exemption from Social Impact Assessment Study.

- Where any land is proposed to be acquired invoking urgency provisions under section 40 and if it is considered expedient to do so, the Collector, where he is not the appropriate Government, shall submit a report to the State Government for the purpose of issue of appropriate directions under sub-sections (1) and (4) of the section 40. In other cases, the decision shall be taken by the Collector and he shall issue appropriate directions.

Chapter III

Social Impact Assessment

6.

Social Impact Assessment Study.

- The Notification required to be issued under sub-section (1) of section 4 for carrying out the Social Impact Assessment study shall include the following particulars, namely:-

(a)

Name of project developer, a brief description of the proposed project, the extent of lands proposed for acquisition, the project area and the affected areas to be covered by the SIA study.

(b)

The main objectives of the SIA study and key activities such as consultations, survey, public hearings etc.,

(c)

If consent of Gram Sabhas and / or land owners is required or not;

(d)

The timeline for the SIA study and the final deliverables (Social Impact Assessment Report and Social Impact Management Plan) along with the manner of their disclosure;

(e)

Contact information of the TNSSIA Unit:

Provided that no such notification shall be issued, unless the Requiring Body has submitted the administrative sanction order for such land acquisition along with a clear undertaking for availability of funds by the competent authority of the Requiring Body:

Provided further that no such notification shall be issued, unless the Requiring Body has deposited the cost towards the Social Impact Assessment study and any other such cost as may be required by the appropriate Government:

Provided also that, such notification shall be issued within a period of thirty days from the date of deposit of the cost towards the Social Impact Assessment study by the Requiring Body.

7.

Tamil Nadu State Social Impact Assessment Unit (TNSSIA Unit).- The State Government shall identify or establish an organization, namely, the State Social Impact Assessment Unit, (hereinafter called as TNSSIA Unit) which shall be responsible for ensuring that the Social Impact Assessment studies are commissioned and conducted by the SIA Agency concerned as per the provisions of the Act and these Rules. The TNSSIA Unit shall function under the overall control of the [Commissioner.]

[Notified vide G.O. Ms. No. 304 Rev & DM Department dated 20-9-2017]

8.

Empanelment of SIA Agencies.

- The TNSSIA Unit shall invite applications from the departments of recognized universities, colleges and reputed organizations for empanelment as SIA Agencies to carry out Social Impact Assessment studies and to prepare Social Impact Management Plan under the Act. After assessing the capacities, qualifications and experience of the applicants, the TNSSIA Unit shall empanel the eligible applicants to be SIA Agencies, so as to create a State data base of qualified SIA Agencies. The Requiring Body shall not be involved in any way in the selection of the SIA Agency to carry out the Social Impact Assessment.

9.

Project-Specific Terms of Reference (ToR) and Processing fee for the SIA.

(1)

Where the appropriate Government [intends to acquire land, the proposal for such land acquisition shall be sent along with all the relevant documents to the TNSSIA Unit .

(2)

On receipt of a proposal for land acquisition, the TNSSIA Unit shall,]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

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(a)

prepare a detailed project-specific Terms of Reference (herein after called as 'the ToR') for each proposal of land acquisition, which shall include the following particulars, namely:-

(i)

a brief description of the project, project area and the extent of lands proposed for acquisition;

(ii)

the objectives of the SIA study and all the activities that must be carried out by the SIA team;

(iii)

sequencing, schedule and deadlines for deliverables with dates for the SIA process, based on the size and complexity of the project and land acquisition;

(iv)

whether consent of Gram Sabhas and / or land owners is required to be sought;

(v)

the appropriate team size, number of teams and the profile of the SIA agency required (including field surveyors, if needed) to conduct the SIA study for the project;

(vi)

a project-specific budget based on the ToR, with a clear break-up of costs for each item or activity; and

(vii)

the schedule for the disbursement of funds to the SIA agency tied to clearly-defined deliverables in the SIA process

(b)

prepare an estimate of the Social Impact Assessment fee based on the ToR with clear break up of costs for each item or activity. The fee amount shall be based on the parameters to be specified by the State Government from time to time such as area, type of project and number of affected families, resources deployed etc.

(3)

The processing fee payable to the SIA Unit towards the preparation and submission of the ToR and the SIA fee report shall be at the rate of ten per cent of the Social Impact Assessment fee.

(4)

The Requiring Body shall deposit the Social Impact Assessment fee along with the processing fee in the Account of the appropriate Government [in a Scheduled Bank designated for that purpose]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

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10.

Process of conducting the Social Impact Assessment.

(1)

Based on the ToR, the TNSSIA Unit, shall select an eligible agency from the empanelled Agencies referred to in rule 8 as per the provisions laid down in the Tamil Nadu Transparency in Tenders Act, 1998 (Tamil Nadu Act 43 of 1998

), and appoint it to be the SIA Agency to carry out the SIA study in respect of a project.

(2)

The SIA Agency so appointed shall collect and analyze a range of quantitative and qualitative data, undertake detailed site visits, use participatory methods and appraisal techniques and other relevant techniques and methodologies in preparing the Social Impact Assessment report.

(3)

All relevant project reports and feasibility studies shall be made available to the SIA Agency as may be required by it during the SIA process. Any request for information by the SIA Agency shall be met at the earliest, at any event, within seven days from the date of receipt of a request. An officer designated by the appropriate Government [shall be responsible for providing the information requested by the SIA Agency]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

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(4)

A detailed assessment based on a thorough analysis of all relevant land records and data, field verification, review and comparison with similar projects shall be conducted by the SIA Agency. The assessment shall determine the following, namely:-

(a)

area of impact of the proposed project, including lands to be acquired and areas that will be affected by social or other impacts of the project;

(b)

quantity and location of land proposed to be acquired for the project;

(c)

whether the extent of land proposed for acquisition is the bare minimum required;

(d)

possible alternative sites for the project and their feasibility;

(e)

whether the land proposed for acquisition in a Scheduled area, if any, is a demonstrable last resort;

(f)

land, if any, already purchased, alienated, leased or acquired, and the intended use of each plot of land required for the project;

(g)

the possibility of use of any public, unutilized land for the project and whether any of such land is under occupation;

(h)

nature of the land, present use and classification of land and if it is agricultural land, the irrigation coverage for the said land and the cropping pattern;

(i)

whether the special provision to safeguard food [security]

[Notified vide G.O. Ms. No. 301 Rev & DM Department dated 20-9-2017]

has been adhered to in the proposed land acquisition;

(j)

size of holdings, ownership patterns, land distribution, number of residential houses and public and private infrastructure and assets; and

(k)

land prices and recent changes in ownership, transfer and use of lands over the last three years.

(5)

Based on the land assessment, land records and field verification, the SIA report shall also provide an accurate estimate of the number of affected families and the number of displaced families among them and shall enumerate all the affected families.

(6)

A socio economic and cultural profile of the affected area covering the following parameters shall be prepared by the SIA Agency based on available data and statistics, field visits and consultations:-

(a)

Demographic details of the population in the project area

(i)

Age, sex, caste, religion

(ii)

Literacy, health and nutritional status

(b)

Poverty levels

(c)

Vulnerable groups

(i)

Women,

- (ii)
children,
- (iii)
the elderly,
- (iv)
women - headed households,
- (v)
the differently abled
- (d)
Kinship patterns and women's role in the family
- (e)
Social and cultural organization
- (f)
Administrative organization
- (g)
Political organization
- (h)
Civil society organizations and social movements
- (i)
Land use and livelihood
- (j)
Local economic activities
- (k)
Factors that contribute to local livelihoods
- (l)
Quality of the living environment.

(7)
Based on the data collected in the processes specified above and also in consultation with the affected stake holders, the SIA Agency shall identify and assess the nature, extent and intensity of the positive and negative social impacts associated with the proposed project and land acquisition on the areas specified below, namely:-

- (a)
Impact on land, livelihoods and income
- (b)
Impacts on physical resources
- (c)
Impacts on private assets, public services and utilities
- (d)
Health impacts
- (e)
Impacts on culture and social cohesion
- (f)
Impacts at different stages of the project cycle
- (i)
Pre-construction phase
- (ii)
Construction phase
- (iii)
Operation phase
- (iv)
De-commissioning phase
- (v)

Direct and indirect impacts

(vi)

Differential impacts

(vii)

Cumulative impacts.

(8)

The Social Impact Assessment Report shall contain the following particulars, namely:-

(a)

Executive Summary.

(b)

Detailed project description and whether the project serves a public purpose.

(c)

Team composition, approach, methodology and schedule of the Social Impact Assessment.

(d)

Land Assessment - extent of lands (public and private), houses, settlements and other common properties likely to be affected by the proposed acquisition;

(e)

Whether the extent of land proposed for acquisition is the absolute bare minimum extent needed for the project;

(f)

Whether land acquisition at an alternate place has been considered and found not feasible;

(g)

Estimation and enumeration (where required) of affected families and assets that will be displaced.

(h)

Socio-economic and cultural profile of the affected area and resettlement site.

(i)

Social impacts on public and community properties and infrastructure as detailed in sub-section (5) of section 4.

(j)

Analysis of costs and benefits and recommendation on acquisition.

(k)

References and forms.

(9)

The SIA Agency shall also prepare a Social Impact Management Plan suggesting the ameliorative measures to be taken to address the social impacts identified in the course of SIA study and such measures shall include the following namely:-

(a)

Approach to mitigation.

(b)

Ameliorative measures to avoid, mitigate and compensate impact of the project as defined under sub-section (5) of section 4.

(c)

Measures that may be included in the terms of Rehabilitation and Resettlement Scheme as outlined in the Act.

(d)

Measures that the Requiring Body has stated it will introduce in the project proposal to avoid, mitigate and compensate social impacts.

(e)

Additional measures that the Requiring Body has stated it will undertake in response to the findings of the SIA process and public hearings.

(f)

Description of institutional structures and key persons responsible for each mitigation measure, timelines and costs for each activity.

(10)

The Social Impact Assessment study shall be carried out in such a manner that it shall provide a conclusive assessment of the balance and distribution of the social impacts and social costs and benefits of the proposed project and land acquisition, including the mitigation measures. It shall also provide an assessment as to whether the benefits of the proposed project will outweigh the social costs and adverse social impacts that are likely to be experienced by the affected families or even after the proposed mitigation measures, the affected families will remain at risk of being economically or socially worse.

11.

Process of conducting public hearings.

(1)

When a draft of the Social Impact Assessment study report is prepared by the SIA Agency, the appropriate [Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

shall ensure that a public hearing is conducted in the affected areas through the district administration by giving notice of not less than fifteen days, indicating time, place and date of public hearing. In the public hearing, the main findings of the draft Social Impact Assessment study report shall be brought out and the feedback of the public thereon shall be sought for. Such feedback and any other additional information and views of the public obtained in the public hearing shall be incorporated in the final Social Impact Assessment report.

(2)

All public hearings shall be documented. The documents shall be handed over by the SIA Agency to the appropriate [Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

along with the final Social Impact Assessment report.

(3)

The views and suggestions expressed by the affected families in the public hearing shall be recorded and duly considered in the final Social Impact Assessment report.

(4)

The representatives of the Requiring Body, duly authorized by it in this regard, shall attend the public hearing and clarify the questions and concerns raised by the affected families.

(5)

The public hearing shall be conducted in the local language only.

(6)

The draft Social Impact Assessment study report and the draft Social Impact Management Plan shall be prepared by the SIA Agency in the local language and they shall be made available in the office of the local bodies concerned at village level or ward level, as the case may be, prior to the date of public hearing. The copies of the said report shall also be kept in the office of the Collector, Revenue Divisional Officer and the Tahsildar concerned, eight days prior to the date of public hearing. A copy of the report shall also be given to the Requiring Body.

(7)

No public hearing shall be re-conducted, if the public hearing is disturbed by mis behaviour of miscreants present, leading to disturbance of public peace, law and order and in such a situation, the public hearing shall be deemed to be concluded.

Chapter IV

Prior Consent

12.

Process of obtaining prior consent of affected families.

- In the case of land acquisition for private companies for public purpose, the process of obtaining the prior consent of the affected families under the first proviso to clause (b) of sub-section (2) of section 2 shall be as follows:-

(a)

A meeting of the affected families shall be conducted by the authority designated for this purpose by the appropriate Government, at the village level or ward level, as the case may be.

(b)

The list of affected families shall be prepared by the designated authority and made available in the affected areas.

(c)

The designated authority shall give a notice of the date, time and venue of the meeting, at least three weeks in advance.

(d)

The representatives of the Requiring Body, who are competent to take decisions and negotiate terms of rehabilitation, resettlement and compensation shall attend all such meetings and shall clarify the queries raised by the affected families. The terms and conditions of rehabilitation, resettlement, compensation and other measures as agreed to by the representative of the Requiring Body shall be explained to the affected families in their local language and signatures of the affected families as well as the representatives of the Requiring Body shall be obtained on such terms and conditions.

(e)

At the conclusion of the meeting, each affected family shall be asked to give a declaration as to whether it gives its consent or withholds the same for the acquisition of land involved, in Form-II appended to these Rules and a photograph of the signatory shall be affixed on it.

(f)

The authorized representative of the Requiring Body shall also sign Form-II and shall put the seal of the Requiring Body towards its agreement to the consented terms and conditions.

(g)

Any one member of the local body concerned, at village level or ward level, as the case may be, or any Government servant, may sign Form-II as a witness thereof to the effect that he recognizes the person who has signed Form-II.

(h)

A copy of the consent so obtained in Form-II shall be given to the affected families and the Requiring Body.

(i)

All affected families interested in the same piece of land can give their consent on a single Form.

(j)

Different forms shall be used for giving consent by an affected family in respect of different lands.

(k)

No affected family can withdraw its consent given in the above manner

(l)

Before initiating the consent procedure, the provisions relating to consent shall be translated into the local language of the affected families and a copy of the same shall be given to each affected family present in the meeting or the same shall be read out to the affected families, in case they are illiterate.

(m)

Arrangements shall be made for enabling the affected families, who could not attend the meeting, to submit their signed declarations in Form-III to the designated authority within fifteen days from the date of such meeting. The signed declaration forms shall be countersigned by the designated authority on its receipt and a copy of the countersigned declaration, with a copy of the terms and conditions shall be furnished to each declarant.

(n)

In case of a land situated in any Scheduled Area as defined in clause (zd) of section 3, the consent of the Gram Sabha shall be obtained in Form-III appended to these Rules, before the initiation of the consent process in respect of the affected families.

(o)

The above process shall be concluded before the publication of the preliminary notification under sub-section (1) of section 11.

Explanation. - For the purpose of this rule, 'affected families' means the affected families as defined in sub-clauses (i) and (v) of clause (c) of section 3.

Chapter V

Preliminary Notification For Land Acquisition and Rehabilitation And Resettlement Scheme

13.

Publication of preliminary notification.

(1)

The preliminary notification under sub-section (1) of Section 11 shall be published in FORM IV.

(2)

A copy of the preliminary notification issued under sub-section (1) of section 11 shall be affixed at conspicuous places in the affected areas and shall also be announced through vehicle mounted public address system to give wide publicity.

(3)

After issuance of the preliminary notification under sub-section (1) of section 11, the Collector shall undertake and complete the exercise of updating land records within a period of two months from the date of publication of preliminary notification in the Tamil Nadu Government Gazette, in the following manner, namely.

(a)

delete the names of deceased persons;

(b)

enter the names of the legal heirs of the deceased persons;

(c)

make necessary entries of the registered transactions of the rights in land such as sale, gift, partition, etc.;

(d)

make entries of all the mortgages of the land;

(e)

delete the entries of mortgages, in case the mortgagee issues a letter towards full payment of loans;

(f)

make necessary entries in respect of all prevalent forest laws;

(g)

make necessary entries in case of Government lands;

(h)

make necessary entries of sub-division of the survey numbers involved in the acquisition based on mutations already carried out;

(i)

make necessary entries in respect of assets and structures on the land like trees, wells, houses, buildings etc;

(j)

make necessary entries with respect of non-agricultural use of the land;

(k)

make necessary entries of share croppers or tenants in the land;

(l)

make necessary entries of crops grown or sown and the area of such crops;

(m)

make any other entries or updation which may be required in respect of land acquisition, award of compensation, rehabilitation and resettlement measures.

(4)

In order to complete the above exercise, the Collector may give notice to the affected land owners to produce necessary documents within a period not exceeding one month.

14.

Hearing of objections.

(1)

The Collector shall issue a notice for inviting objections on the preliminary notification in FORM V and after hearing all objections and making enquiry as provided under sub-section (2) of Section 15, shall submit a report along with his recommendations on the objections to the appropriate Government for decision.

(2)

The report of the Collector shall include the following:-

(a)

assessment as to whether the proposed acquisition serves public purpose;

(b)

whether the extent of land proposed for acquisition is the absolute bare-minimum extent needed for the project;

(c)

whether land acquisition at an alternate place has been considered and found not feasible;

(d)
whether there is any land which has been previously acquired in the area and remain unutilised;

(e)
recommendations on the objections;

(f)
record of proceedings;

(g)
approximate cost of land acquisition in cases where Social Impact Assessment has been exempted.

Chapter VI

Rehabilitation and Resettlement Scheme

15.

Preparation of Rehabilitation and Resettlement Scheme by the Administrator.

- The [Administrator]

[Notified vide G.O. Ms. No. 302 Rev & DM Department dated 20-9-2017]

appointed under sub-section (1) of section 43 in respect of a project shall,-

(1)
upon the publication of the preliminary notification under sub-section (1) of section 11 by the appropriate [Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

, conduct a survey and undertake the census of the affected families within a period of three months from the date of publication of the preliminary notification, taking into account of the Social Impact Assessment study report, (in cases where such a report has been prepared), as well as the data obtained from secondary sources, such as local bodies concerned and other Government records. The data shall be verified by door to door visit to the affected families whenever required and by making site visit to assess the infrastructure amenities available in the affected areas.

(2)
based on the above survey and census, prepare a draft Rehabilitation and Resettlement Scheme which shall contain the particulars, in addition to the particulars mentioned in sub-section (2) of Section 16 and the Second Schedule to the Act, namely:-

(a)
list of families likely to be displaced;

(b)
list of infrastructure existing in the affected area;

(c)
list of land holdings in the affected area;

(d)
list of trades / business in the affected area;

(e)
list of affected families belonging to disadvantaged groups such as Scheduled Castes or Scheduled Tribes and members thereof and handicapped persons who belong to the affected families; and

(f)
list of landless agricultural labourers in the affected areas whose livelihood was primarily dependent on the acquired land.

(3)
give wide publicity to the draft Rehabilitation and Resettlement Scheme in the affected areas through publication in,-

(a)
the Official Gazette;

(b)
two daily news papers having wide circulation in the locality;

(c)
the local language in the Panchayat, Municipality, Corporation as the case may be, and in the offices of the Village Administrative Officer/Revenue Inspector, Tahsildar, Revenue Divisional Officer, Collector and the Commissioner.

(d)

the website of the appropriate [Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

.

(e)

its offices in the affected areas, by affixing a public notice.

(4)

make the draft scheme available to the persons and authorities concerned.

(5)

or an officer designated by him shall conduct a public hearing regarding the draft Rehabilitation and Resettlement Scheme in the affected areas on a suitable date as he thinks fit but not earlier than fifteen days from the date of publication of such Scheme, giving wide publicity about the date, time and venue thereof and shall maintain a record of objections and claims raised in the public hearing. The provisions of rule 11 relating to conduct of public hearing shall mutatis-mutandis apply to this public hearing.

(6)

submit the draft Rehabilitation and Resettlement Scheme along with his report on the claims and objections to the Collector within fourteen days after completion of public hearing.

16.

Publication of declaration under sub-section (2) of Section 19.

- A declaration under sub-section (2) of section 19 that any land is needed for a public purpose shall be published by the Collector under sub-section (1) of section 19 in Form VI only after the Requiring Body has deposited fifty per cent of the cost of acquisition of land.

17.

Development Plan for Scheduled Castes or Scheduled Tribes families.

- The Development Plan shall be prepared, in cases of a project involving land acquisition on behalf of a Requiring Body which involves involuntary displacement of the Scheduled Castes or Scheduled Tribes families, referred to in section 41, which shall consists of the following particulars namely:-

(a)

List of displaced Scheduled Castes /Scheduled Tribes (SC/ST) persons whose land rights have not been settled.

(b)

Plan to restore titles of the above SC/ST families.

(c)

Programme for development of alternate fuel, fodder and non-timber produce resources on non-forest lands within a period of five years, sufficient to meet the requirements of tribal communities as well as the Scheduled Castes under sub-section (5) of section 41.

(d)

Extent of land to be given by the appropriate Government free of cost for social and community gatherings.

(e)

Provision of employment for landless labourers, under Mahatma Gandhi National Rural Employment Guarantee Scheme or / and any other job providing Scheme of the Government.

(f)

Skill development through different training programs for the youth of the affected family.

(g)

Alternative fuel, fodder and non-timber forest produce resources on no-forest land, for affected members of Scheduled Castes.

(h)

Fishing rights in reservoir area or hydel projects, where applicable

(i)

Where the affected families belonging to the Scheduled Castes and the Scheduled Tribes are relocated outside the district, then they shall be paid an additional twenty-five per cent rehabilitation and resettlement benefits to which they are entitled in monetary terms along with a one-time entitlement of fifty thousand rupees.

(i)

Where the community rights have been settled under the provisions of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, the same shall be quantified in monetary amount and be paid to the individual concerned who has been displaced due to the acquisition of land in proportion with his share in such community rights.

18.

Land Acquisition Award.

(1)

The land acquisition award referred to in section 23 shall be made in FORM VII and FORM VIII

(2)

If the amount of award compensation for land to be paid is not more than Rupees two crores and if the amount of award compensation including rehabilitation and resettlement benefits to be paid is not more than Rupees five crores, then the Collector shall approve the award.

(3)

If the amount of award compensation for land to be paid is more than Rupees two crores, but not more than Rupees eight crores and if the amount of award compensation including rehabilitation and resettlement benefits, to be paid is more than Rupees five crores, but not more than Rupees twenty crores, the Collector shall make an award after getting the prior approval of the Commissioner of Land Administration.

(4)

If the amount of award compensation for land to be paid is more than Rupees eight crores and if the amount of award compensation including rehabilitation and resettlement benefits, to be paid is more than Rupees twenty crores, the Collector shall make an award after getting the prior approval of the State Government.

19.

Eligibility for availing One time Resettlement Allowance.

- The affected families which are actually displaced from the land acquired alone shall be eligible for the One-time Resettlement Allowance under Serial No. 10 of the Second Schedule to the Act.

20.

Fishing rights of affected families.

- The fishing rights referred to in column (3) against serial number 9 of the Second Schedule to the Act, shall be allowed by the Fisheries Department in consultation with the Irrigation Department, Revenue Department or any other Department concerned of the Government.

21.

Procedure for recovering excess payment.

(1)

Wherever any excess amount is proved to have been paid to any person as a result of the correction made in the Award under sub-section (1) of section 33 and that person has defaulted or refused to refund the excess amount so paid, then the excess amount so paid shall be recovered from that person by the Collector as arrears of land revenue. Such recovery proceedings shall, however, be initiated within a period of three years from the date on which the excess amount has been paid.

22.

Recovery of Rehabilitation and Resettlement benefits availed through False Claim, etc.

(1)

Any rehabilitation and resettlement benefit availed of by making a false claim or through fraudulent means shall be recovered as arrears of land revenue under the provisions of the Revenue Recovery Act, 1890 (Central Act 1 of 1890).

(2)

The land and houses so forfeited shall be used for the rehabilitation and resettlement of the affected families of the same project or for any other public purpose, as the case may be.

(3)

The Land Acquisition, Rehabilitation and Resettlement [Authority]

[Notified vide G.O. Ms. No. 305 Rev & DM Department dated 20-9-2017]

shall have the powers of a civil court in the adjudication of any matter relating to availing of rehabilitation and

resettlement benefits through false claims or fraudulent means.

23.

Provisions relating to rehabilitation and resettlement to apply in case of acquisition by a private company or a person other than a specified person.

- [The]

[Notified vide G.O. Ms. No. 303 Rev & DM Department dated 20-9-2017]

provisions relating to rehabilitation and resettlement under the Act shall apply in the cases of purchase of land, equal to or more than 2500 acres in rural areas or equal to or more than 1250 acres in urban areas through negotiation -

(a)

by a private company under clause (a) of sub-section (3) of section 2; or

(b)

by a person other than the person specified under sub-section (1) of section 46.

24.

Choice of Annuity or Employment.

(1)

The owners of the land acquired, whose livelihoods are lost due to the acquisition and other families whose livelihoods are primarily dependent on the land acquired alone are eligible for the benefit of Choice of Annuity or Employment or Lump Sum Grant under Serial No.4 of the Second Schedule to the Act and the owners of the land acquired whose livelihoods are not lost or not primarily dependent on such lands are not entitled for such benefit.

(2)

Where any affected family opts for employment as per Serial No. 4 in the Second Schedule to the Act and where jobs are created through the project, for which land is acquired, the Requiring Body shall make provision for employment for one eligible member of the affected family in that project or any other project at a rate not lower than the minimum wages, after providing suitable training and skill development in the required field.

(3)

Where jobs are created through the project and where the affected families opt for employment under Serial No. 4 of the Second Schedule to the Act, the appropriate Government or any other authority nominated by it for this purpose shall issue a Certificate identifying one member of the affected family as eligible for employment in the project concerned or any other project.

(4)

When a member of the affected family is given employment, the original of the aforesaid Certificate shall be sent to the issuing authority for verification. The employment of a member shall be confirmed only after receiving the genuineness of the Certificate from the Issuing Authority. The Issuing Authority shall verify the Certificate and if it is found to be genuine, he shall intimate the same to the employer concerned and retain the Certificate endorsing it as 'Employment Granted'. The Issuing Authority shall also make necessary entries in the Register to be maintained by him for this purpose.

(5)

The affected families opting for one time payment of Rupees five lakhs or annuity amount in lieu of an employment shall not be given the Certificate identifying the member of the affected family for the employment.

(6)

The Requiring Body shall arrange to give suitable training and skill development in the required field for the members of the affected families so as to enable such persons to take suitable jobs.

(7)

The Requiring Body shall also arrange to give necessary training to members of the affected families for development of entrepreneurship, technical and professional skills for self employment.

Chapter VII

Execution, Rehabilitation and Resettlement Committee and State Monitoring Committee

25.

Execution of Rehabilitation and Resettlement Scheme.

- The Administrator shall execute and monitor the Rehabilitation and Resettlement Scheme and assist the Commissioner in the post implementation social audit of the Rehabilitation and Resettlement Scheme.

26.

Rehabilitation and Resettlement Committee.

(1)

The Rehabilitation and Resettlement Committee constituted under sub- section (1) of section 45, shall have its first meeting as and when a draft Rehabilitation and Resettlement Scheme has been prepared by the Administrator. The Committee shall discuss the draft Scheme and make suggestions and recommendations.

(2)

After the Rehabilitation and Resettlement Scheme is published, the Committee shall meet once in a month and discuss the progress of the Rehabilitation and Resettlement process until it is completed.

(3)

For the purpose of carrying out the post-implementation social audits, the Committee shall meet once in three months.

(4)

The Committee may visit the affected areas and have discussions with the affected families, if it so desires, and pay site visits to the resettlement areas to monitor the resettlement process.

(5)

The members of the Committee shall get travelling allowance and daily allowance at the rates applicable to the Government servants of Group-A category.

27.

Meetings of State Monitoring Committee.

(1)

The State Monitoring Committee constituted under sub-section

(1)

of section 50 shall review and monitor the implementation of Rehabilitation and Resettlement Schemes approved by the Commissioner under section 18. Meetings of the State Monitoring Committee shall be held at least once in six months. If the Committee so desires, it can have its meetings at any time.

(2)

For the purposes of sub-rule (1), the Committee may -

(a)

call for records and information of rehabilitation and resettlement schemes;

(b)

call the Requiring Body for discussion as and when required;

(c)

ask for report about implementation of its decisions.

(3)

The members of the Committee shall get travelling allowance and daily allowance at the rates applicable to an officer of the rank of Secretary to Government.

Chapter VIII

Land Acquisition, Rehabilitation and Resettlement Authority

28.

Service conditions of Presiding Officer, Registrar and other employees of the Land Acquisition, Rehabilitation and Resettlement Authority.

(1)

The salary and other service conditions of the Presiding Officer of the Land Acquisition, Rehabilitation and Resettlement [Authority]

[Notified vide G.O. Ms. No. 305 Rev & DM Department dated 20-9-2017]

shall be as follows:-

(a)

if the Presiding Officer is a serving District Judge, his salary and other service conditions shall continue to be in accordance with the relevant service rules applicable to him in the post of District Judge;

(b)

if the Presiding Officer is a retired District Judge, his salary shall be the last pay drawn by him while he was in service

minus the pension he is drawing from time to time. He shall not be entitled for any pension towards the service rendered by him as the Presiding Officer of the Authority. The other service conditions applicable to the post of District Judge shall mutatis-mutandis applicable to him;

(c)

if the Presiding Officer is a legal practitioner, he shall be paid the pay and other allowances in the minimum scale of pay applicable to the post of District Judge (entry level). He shall not be entitled for any pension. The other service conditions applicable to the post of District Judge shall mutatis-mutandis applicable to him.

(2)

The Registrar and other employees of the Authority shall be appointed on deputation from other Government departments and their salary, allowances and other conditions of service shall continue to be in accordance with the relevant service rules applicable to them in their parent department.

29.

Procedure for Reversion of Unutilized land.

(1)

Where any land acquired under the Act remains unutilized for the period of five years from the date of taking over possession of land by the Requiring Body, the Collector shall, in the first instance examine as to whether that land may be required for any other public purpose. If he is satisfied that such land will be required for any other public purpose, he shall certify the same and recommend the State Government to revert the land to any Government entity that focuses on the conversion of Government owned vacant, abandoned, unutilized acquired lands and tax-delinquent properties into productive use.

(2)

The Collector shall issue a notice regarding the reversion of land, to the Requiring Body for whom the land was acquired. The State Government shall, after giving an opportunity of hearing to the Requiring Body, pass a written order reverting such land to the Land Bank, if it deem fit.

(3)

After such written order is passed, the Collector shall take the possession of the land from the Requiring Body and handover the same to the Land Bank.

(4)

If the Requiring Body does not hand over possession of the land to the Collector, then he shall get the help of the Executive Magistrate and the Police force to take the possession of land after giving prior notice to the Requiring Body.

30.

Publication in affected areas.

(1)

In addition to the modes of publication provided in the relevant sections of the Act, the notification of commencement of SIA study under sub-section (2) of section 4, the decision of the appropriate [Government]

[Notified vide G.O. Ms. No. 299 Rev & DM Department dated 20-9-2017]

on acquisition under sub-section (2) of section 8, the Preliminary Notification issued under sub-section (1) of section 11, and the declaration of acquisition under sub-section (1) of section 19 shall also be affixed in the Notice Board of the Office of the Village Administrative Officer concerned in the districts (other than Chennai District) and in respect of Chennai District in the Notice Board of the Corporation Division Offices concerned.

(2)

In the case of SIA report and SIMP under sub-section (1) of section 6, the recommendations of the Expert Group under sub-section (6) of section 7 and the Rehabilitation and Resettlement Scheme under section 18, the same shall be placed in the Office of the Village Administrative Officer concerned in the districts (other than Chennai District) and in respect of Chennai District, in the Corporation Division Offices concerned and the fact of the availability of the copies of the reports shall be affixed prominently in the Notice Boards of these offices.

31.

Interpretation of these Rules.

- If any question arises as to the matter of interpretation of these Rules, the matter shall be referred to the State Government, whose decision shall be final.

Form - I

[See Rule 3(1)].

Requisition For Land Acquisition

From:

Authorised Signatory of the Requiring Body

(Designation and full address)

To:

1. The District Collector

.....District.

2. Commissioner for Rehabilitation and Resettlement, Tamil Nadu.

It is requested to acquire acre(s) of land for project / purpose and the relevant details are furnished in Appendices I, II and III along with three copies of Combined Sketch showing the lands to be acquired.

Requisite cost of acquisition, including cost of Social Impact Assessment Study (SIA) will be deposited in your office, as provided under the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, (Central Act 30 of 2013) and the Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Rules, 2017 as and when required by you. It is certified that the land to be acquired was demarcated on the field and all further necessary information and assistance will be provided within the time limit specified in the Act and the Rules.

Authorised Signatory of the Requiring Body

Appendix - I

Name of the Project:-

(1)

Name of the Village-

(2)

Name of the Taluk-

(3)

Name of the Municipality, Corporation, Village Panchayat

(4)

Name of the District

(5)

Survey Numbers to be acquired-

(6)

Accurate extent of the land proposed for acquisition in each Survey Number (connected field map is attached)

(7)

Total area under requisition (in acres/hectares/ Sq.mtrs)

(8)

Classification of the lands proposed for acquisition

(a)

Wet

(b)

Dry

(c)

Manavari

(d)

Village site (Natham)

(e)

Poramboke

(9)

Boundaries of the area to be acquired-

East-

West-

North-

South-

(10)

Area of the agricultural and irrigated multi-cropped land

(11)

Reasons for inclusion of agricultural and irrigated multi-cropped land, if any.

(12)

Details of buildings and other structures, tanks, wells, trees, etc.,

(13)

Reasons for the inclusion of religious building, graveyard or tomb etc., for acquisition, if any,

(14)

Joint Inspection by officials concerned:

(15)

Observation for acquisition (if any)

Authorised Signatory of the Requiring Body

Appendix - II

Name of the Project:-

1. Name of the Department or Government, Company, Local Authority or Institution:

2. Official designation of the representative of the Requiring Body authorized to sign the requisition:-

3. Purpose of Acquisition (in detail):-

4. Whether the requisition is filed by the Government for acquisition of lands for its own use, hold and control:-

5. Whether the requisition is filed for the purposes specified in clauses (a) to (f) of sub-section (1) of section 2 of the Act:-

6. Whether the requisition is filed for the purposes specified in clause (a) or clause (b) of sub section (2) of section 2 of the Act:-

7. The number of affected families as defined in clause (c) of section 3 of the Act:-

8. (i) Whether the requisition is filed under section 40 of the Act:-

(ii)

If so, on what ground?

9. (i) Has the land to be acquired already been taken over from the owners by private negotiation?

(ii)

If so, on what date and on what terms? (please state the terms of negotiation in short and attach the copy of it)

10. Date of issue of administrative approval for the project (copy to be attached)

11. Reasons for delay in filing requisition, if requisition is filed after 6 weeks from the date of administrative approval of the project

12. By what time possession of the land is required

Authorised Signatory of the Requiring Body

Appendix - III

Certification To Be Furnished Along With The Requisition For Acquisition Of Land By The Requiring Authorities.

Name of the Project:-

(1)

Certified that the project for which the land is sought to be acquired has been administratively approved vide Department letter No: Dated for acquisition under the Act.

(2)

The estimated cost of the project is of Rs. and necessary budget has been sanctioned and funds are available towards cost of acquisition.

(3)

The Department undertakes to pay the full amount of compensation in case of revision of compensation as per decree / judgments of the Land Acquisition, Rehabilitation and Resettlement Authority / High Court / Supreme Court, as and when asked to do so by the District Collector.

Authorised Signatory of the Requiring Body

Form-II

[See Rule 12 (E)]

Prior Written Consent / Declaration Form By The Affected Family

Photo of the Signatory

Serial No.

Details of person Concerned

(1)

Name of the person(s) in whose name the land is registered

(2)

Name of the spouse:

(3)

Name of father / mother:

(4)

Address:

(5)

Village / Hamlet

(6)

Village Panchayat / Town Panchayat / Municipality / Municipal Corporation

(7)

Taluk:

(8)

District:

(9)

Name of other members in the family with age: (including children and adult dependents)

(10)

Extent of land owned:

(11)

Area under acquisition

(12)

Plot No.

(13)

Record of Rights

(14)

Disputed lands, if any

(15)

Pattas / lease / grants, if any

(16)

Any other right, including tenancy, if any

(17)

Regarding the acquisition of my land by the Government, I wish to state the following

(please circle one of the below)

(i) I have read / read out the contents of this consent form and explained to me in language.

Yes

No

(ii) I agree to this acquisition

Yes

No

Signature / Thumb impression of the affected

family (s) and date:

(18)

The terms and conditions, Rehabilitation and Resettlement, compensation and other measures committed by the Requiring Body have been explained to the affected family in the local language.

(These terms and conditions must be attached to the Form.)

Date, Seal and Signature of the representative of the Requiring Body

Date and Signature of designated district official receiving the signed Form

Note

It is a crime to threaten any person or to cause them any harm if they refuse to consent or if they choose to state that they do not consent on this Form. This includes any threat or act that causes them to lose money, that hurts them physically or that results in harm to their family. If any such threat has been made, this Form is null and void.

Signature of Witness:

Form-III

[See Rule 12(N)]

Gram Sabha Resolution.

We, the undersigned members of Gram Sabha within Panchayat of taluk in district wish to state that the following certification is based on the information supplied by the administration and officials. If this information is incomplete or incorrect or if any consent has been obtained through any use of threats, fraud or misrepresentation, it is null and void. On this basis, this Gram Sabha hereby certifies that it Consents / Refuses To Consent To The Proposed Acquisition Of Land For Project, Which Will Involve:

(a)

acquisition of acres of private land *

(b)

transfer of acres of government land to the project *

(c)

transfer of acres of forest land to the project *

The terms and conditions of compensation, rehabilitation and resettlements benefits and social impact mitigation measures agreed to by the Requiring Body-(state the name) as attached are agreed to by us * /not agreed to by us.*

(*strike out whichever is not applicable).

The Gram Sabha also states that any consent is subject to the condition that all of its residents shall be given title of their individual and community rights over forests and forest lands, including their titles for forest land that they have been cultivating, ownership titles for all forms of minor forest produce that they use, and titles to protect and manage their community forests.

Date and signatures / thumb impressions of Gram Sabha members

Date and Signature of designated district officer receiving the Resolution.

Form IV

[see rule 13 (1)]

Preliminary Notification.

No.....

Dated.....

Whereas it appears to the appropriate Government that a total of.....hectares of land is required in the.....Village in Taluk / Block (as applicable) in District for public purpose, namely Social Impact Assessment Study was carried out by Social Impact Assessment Agency and a report submitted / preliminary investigation was conducted by a team constituted by Collector as laid down under rule 4. The summary of the Social Impact Assessment Report / preliminary investigation is as follows:-

.....(copy of SIA report is attached herewith)

A total of (in number) families are likely to be displaced due to the land acquisition. The reasons necessitating such displacement are given below:-

.....is appointed as Administrator for the purpose of rehabilitation and resettlement of the affected families.

Therefore, it is notified that for the above said project in the Village of Taluk / Block (as applicable).....in District, land measuring an extent.....of hectares, whose details are specified in the Schedule below, is under acquisition:

The Schedule

Sl.No.

Survey No.

Classification of land

Area under acquisition

Boundaries

Structures

Trees

Name & address of person interested

Registered holder

N

E

S

W

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

This notification is made under sub-section (1) of section 11 of the Right to Fair Compensation and Transparency in Land acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013), to all whom it may concern.

A plan of the land may be inspected in the office of the Collector and on any working day during the working hours.

The Government is pleased to authorize and his staff to enter upon a survey land, take levels of any land, dig or bore into the sub-soil and do all other acts required for the proper execution of their work as provided and specified in section 12 of the said Act.

Under sub-section (4) of section 11 of the said Act, no person shall make any transaction or cause any transaction of land i.e. sale / purchase, etc., or create any encumbrances on such land from the date of publication of this notification in the Tamil Nadu Government Gazette without prior approval of the Collector.

Objections to the acquisition, if any, may be filed by the person interested within 60 (sixty) days from the date of publication of this notification in the Tamil Nadu Government Gazette as provided under section 15 of the said Act before the Collector.

Since the land is urgently required under sub-section (1) of section 40 of the said Act / urgently required for the project involving defence of India / National Security / Emergencies arising out of Natural Calamities / emergency with the approval of Parliament (Strike off what is not applicable) under sub-section (2) of section 40 of the said Act, it has been decided not to carry out the Social Impact Assessment Study, vide G.O. No. , , dated .

Enclosure: As above Place:

Date:

Collector

*Strike out if not applicable.

Form-V

[see rule 14(1)]

Notice By Collector

No.....

dated.....

Notice is hereby given that the land specified in the Schedule below and situated in the.....village in Taluk / Block inDistrict is needed or is likely to be needed in accordance with the preliminary notification issued under sub-section (1) of section 11 of the Right to Fair Compensation and Transparency in Land acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013), published at page.....of Part.....of the Tamil Nadu Government Gazette dated the . All persons interested in the land are accordingly requested to file their objections before within sixty (60) days from the date of publication of the above preliminary notification, a statement in writing of their objection,.....if any, to the acquisition of the said land.

Any objection, which is received after the due date or which does not clearly explain the nature of the senders interest in the lands, is liable to be summarily rejected.

Objections received within the due date, if any, will be enquired into on at when the objector will be at liberty to appear in person or by advocate and to adduce any oral or documentary evidence in support of their objections.

The Schedule

Sl. No.

Survey No.

Total area in hectares

Area in hectares under acquisition

Name and address of the person Interested /

Registered holder

Boundaries

Details of trees, structures etc., if any

N

E

S

W

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Place

Date :

Collector

Form VI

[see rule 16]

Declaration

No:

Date .

Whereas, it appears to the Government that a total of hectares of land is required in the Village in..... Taluk / Block (as applicable) in..... District for a public purpose, namely, in.....

Now, therefore, a declaration is made hereby that a piece of land measuring hectares is under acquisition for the above said project in the Village in Taluk / Block (as applicable) in District whose detailed description is as follows:

Sl. No.

Survey No.

Type of title

Type of land

Area under acquisition (in hectare)

Name and address of person interested

Boundaries

Trees

Structures

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

N

E

S

W

Variety

Number

Type

Plinth area

This declaration is made after hearing of objections of persons interested and due enquiry as provided under section 15 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013). The number of families likely to be resettled due to land acquisition is for whom resettlement area has been identified, whose brief description is as follows:-

Survey Number of Lands

Village.....Taluk / Block (as applicable).....District.....Area.....(in hectares).

Mines of coal, iron-stone, slate or other minerals lying under the said land or any particular portion of the said land, except such parts of the mines and minerals which may be required to be dug or removed or used during the construction phase of the project for the purpose of which the land is being acquired, are not needed.

A plan of the land may be inspected in the office of the Land Acquisition Officer and on any working day.

A summary of the Rehabilitation and Resettlement Scheme is appended.

Enclosure: As above

Collector.

Form VII

[See rule 18]

Land Acquisition Award

Land Acquisition file No. / Award No. Date :

1. Name of the Project :

2. Number and date of declaration under which the land is to be acquired

3. Situation and extent of the land in hectares, the number of field plots on the survey map, the village in which the land is situated, with the number of mile plan, if any.

4. Description of the land, i.e., whether fallow, cultivated, homestead, etc. If cultivated, how cultivated, and the source of irrigation;

5. Names of persons interested in the land and the nature of their respective interests;

6. Amount allowed for the land itself, without trees, buildings etc., if any;

7. Amount allowed out of such sum as compensation for the tenants interested in the land;

8. Basis of calculation:

9. Amount allowed for trees, houses or any other immovable property;

10. Amount allowed for crops;

11. Additional compensation on the market value under sub-section (3) of section 30 of the Act;

12. Damage, if any, sustained to the person interested as specified under section 28 of the Act;

13. Solatium under sub-section (1) of section 30 of the Act;

14. Total of amounts ;

Sl. No.

Area of land for apportionment of compensation

(in hectares)

Survey No. Boundaries

Name of claimants

Document produced to prove the claim

Amount payable to each claimant

Bank A/c No.

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

N

S

E

W

15. Date on which possession was taken under sub-section (1) of section 38 or sub-section (1) of section 40 of the Act;

16. If possession was taken under sub-section (1) of section 40, the number and date of the order of the appropriate Government giving directions to do so.

Date

Signature Land Acquisition Officer.

Form No. VIII

[See rule 18]

Award For Rehabilitation And Resettlement

Land Acquisition File No.

Award No.

Date :

1. Name of the Project

2. No. and date of declaration under which the land is to be acquired

3. Situation and extent of the land in hectares, the number of field plots on the survey map, the village in which the land is situated, with the number of mile plan, if any.

4. Description of housing units, transportation cost, housing allowance, annuity, employment subsistence grant, cattle shed, petty shop, one time resettlement allowance, etc.,

5. Names of person interested in the land and the nature of their respective claim for Rehabilitation and Resettlement.

6. Apportionment of the amount of compensation (in hectares

Sl. No.

Name of the Claimants / affected family

Rehabilitation and Resettlement entitlements

Bank account No.

Amount payable to each claimant/ affected family

Non-monetary

limit Remarks

(1)
(2)
(3)
(4)
(5)
(6)
(7)

1. House to be allotted
2. Land to be allotted
3. Offer for developed land
4. Annuity / employment
5. Subsistence grant
6. Transportation cost /housing allowance
7. Cattle shed / Petty shop
8. One time grant to artisans / small traders /
certain others
9. Fishing rights
10. One time resettlement allowance
11. Stamp duty and registration fee

Collector

District:

Related AI tags, queries and research notes

Translation